

GLM, DeepSeek, Llama are **NOT** open source.

They're open weight. The difference matters —
for your lawyers, your architects, and your roadmap.



Almost every model marketed as
"open source"
today is actually open weight only.

OPEN WEIGHT $\neq$ OPEN SOURCE

The openness spectrum

What you actually get in each tier

CLOSED

Proprietary

Weights: no

Code: no

Data: no

Examples: GPT, Claude, Gemini

OPEN WEIGHT

Most 'open' models

Weights: yes — download, run, fine-tune

Code: partial or none

Data: no

Examples: Llama, DeepSeek, Qwen, GLM, Gemma

OPEN SOURCE AI

The OSI bar

Weights: yes

Code: full training code

Data: enough info to rebuild

Almost no model has cleared this bar yet

Open weights give you the finished model.

Open source would give you the recipe.

Deploy and fine-tune — yes. Audit or rebuild from scratch — no.

[Per the OSI Open Source AI Definition \(v1.0, 2024\) →](#)

The lineup, fact-checked

License as published by each lab — and what it really is

MODEL	LICENSE	REALITY
 GLM (Z.ai) Permissive — but no training data or full code	MIT	Open weight
 DeepSeek R1 / V3 Very permissive; still no data or recipe	MIT	Open weight
 Llama 4 700M MAU cap + use restrictions	Llama Community	Open weight
 Qwen Great license; data still closed	Apache 2.0	Open weight
 Gemma 3 Custom license with use restrictions	Gemma Terms	Open weight
 Mistral Permissive; data closed	Apache 2.0*	Open weight

None of these clear the OSI bar for open source AI — the missing piece is always the training data and full recipe.

Sources: official model cards, GitHub licenses, OSI. →

Why the difference matters

Not pedantry — real legal and engineering consequences

Why Llama isn't open source

✗ **700M MAU clause**

700M+ monthly users? You need a special license from Meta.

✗ **Use restrictions**

The license bans certain fields of use — OSI rule 6 forbids this.

✗ **Regulator clause**

The license can restrict who uses it — breaks OSI rule 5.

✗ **No training data**

You can't study, audit, or rebuild the model from scratch.

What open weights DO give you

✓ **Self-host**

Run on your own GPUs — data never leaves your boundary.

✓ **Fine-tune**

Adapt to your domain and own the derivative.

✓ **Distill**

Train smaller models on its outputs (DeepSeek's MIT allows it).

✓ **Red-team locally**

Test it on your own infra before you ship.

The 5-second test:

Can you rebuild it from what they published?

If not, it's open weight — no matter what the launch tweet says.

Procurement tip: when a vendor says 'open source', ask which one they mean.

Learn it in 5 minutes

The quick-read stack, from intro to deep dive

1

OSI — Open Source AI Definition

The actual definition — and the data disclosure it requires. 8-min read.

opensource.org/ai

START HERE

2

HF docs — Open vs Open-weight

Hugging Face's own docs separate the two. 5-min read.

huggingface.co/docs

3

Llama Community License

Read the 700M clause and regulator clause yourself. 3 pages.

ai.meta.com/llama

4

DeepSeek-R1 model card

MIT on weights + code; note what's NOT there: dataset, recipe.

huggingface.co/deepseek-ai

5

Model Openness Framework

LF AI & Data's 16-criteria grading of openness.

lfai.foundation

Total: under 30 minutes to be the person in the room who knows this cold.

The bottom line

Open weights are still a big deal — self-hosting, fine-tuning, distillation, data staying inside your boundary.

Just call it what it is. Precision builds trust; hype burns it.

SOURCES

OSI Open Source AI Definition v1.0

Llama Community License · DeepSeek-R1 MIT · Qwen Apache-2.0

Gemma Terms of Use · LF AI Model Openness Framework



Found this useful?

I break down AI infra & licensing myths like this every week — no hype, receipts included.

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Repost if this saved you an argument with a vendor ♻️